

		Accordingly, the Court GRANTS Judgment Creditor Jacqueline Martinez's Motion to Compel Responses to Judgment Debtor Interrogatories, Set One. Judgment Debtor shall serve Code-compliant responses, without objections, within 30 days of this order. (Code Civ. Proc., § 2030.290, subds. (a), (b).) Judgment Creditor's request for sanctions against Plaintiff is granted in the reduced amount of \$1,375.00, payable within 30 days. (Code Civ. Proc., § 2030.290, subd. (c).)
6	24-01445819 <i>Hovarter vs. Borski</i>	1) Motion to Compel Production 2) Motion to Compel Production MOTION NO. 1 – MOTION TO COMPEL FURTHER RESPONSES TO REQUESTS FOR PRODUCTION, SET ONE AND PRODUCTION OF DOCUMENTS, AND FOR MONETARY SANCTIONS Plaintiff Trevor Hovarter's Motion Compel Responses to Requests for Production, Set One (RFP), and Production of Documents, and for Monetary Sanctions as to Defendant Loren Borski is CONTINUED to [REDACTED]/26 at 10:00 a.m. in Department C33. While the parties refer to Defendant's verified Amended Supplemental Responses to RFPs served on 6/9/26, neither party attaches a copy of those responses. Defendant is ORDERED to file a copy of Defendant's verified Amended Supplemental Responses to the first set of RFPs served on 6/9/26 at least nine (9) court days before the continued hearing. No further briefing will be permitted. MOTION NO. 2 – MOTION TO COMPEL COMPLIANCE WITH RESPONSES TO REQUESTS FOR PRODUCTION OF DOCUMENTS, SET ONE, AND FOR MONETARY SANCTIONS Plaintiff Trevor Hovarter's Motion Compel Compliance with Responses to Requests for Production of Documents, Set One, and for Monetary Sanctions as to Defendant Loren Borski is CONTINUED to [REDACTED]/26 at 10:00 a.m. in Department C33. While the parties refer to Defendant's verified Amended Supplemental Responses to RFPs served on 6/9/26, neither party attaches a copy of those responses. Defendant is ORDERED to file a copy of Defendant's verified Amended Supplemental Responses to the first set of RFPs

		served on 6/9/26 at least nine (9) court days before the continued hearing. No further briefing will be permitted.
7	25-01524757 <i>Iserhien vs. Irvine Holding Company LLC</i>	Motion for Order to Stay Proceedings Defendant The Irvine Company LLC’s motion to compel plaintiff Darya N. Iserhien to submit her claims to binding arbitration, and to stay the action pending arbitration is GRANTED. Defendants move to compel arbitration pursuant to the Federal Arbitration Act (9 U.S.C. § 1, et seq.) <u>Federal Arbitration Act (“FAA”):</u> The FAA “applies where there is ‘a contract evidencing a transaction involving commerce.’” (<i>Allied-Bruce Terminix Companies, Inc. v. Dobson</i> (1995) 513 U.S. 265, 277 [quoting 9 USC § 2] [emphasis in original].) Here, the agreement to arbitrate expressly states, “The Lease and this arbitration and class action waiver Addendum shall be governed by, and all questions and disputes regarding arbitrability shall be determined in accordance with, the Federal Arbitration Act, 9 U.S.C. Sections 1-16, notwithstanding any other choice of law provision.” (Matosic Decl., ¶ 5, Ex. A.) Defendant has also shown it engages in interstate commerce. Specifically, Defendant leases apartments to out-of-state residents and its marketing efforts include nationwide internet advertising through social media websites and internet search engines. (Matosic Decl., ¶¶ 3, 4.) Therefore, the FAA applies. A court’s role in considering a petition to compel arbitration under the FAA is limited to “determining (1) whether a valid agreement to arbitrate exists and, if it does, (2) whether the agreement encompasses the dispute at issue. If the response is affirmative on both counts, then the Act requires the court to enforce the arbitration agreement in accordance with its terms.” (<i>Chiron Corp. v. Ortho Diagnostic Sys. Inc.</i> (9th Cir. 2000) 207 F.3d 1126, 1130.) “In determining the rights of parties to enforce an arbitration agreement within the FAA’s scope, courts apply state contract law while giving due regard to the federal policy favoring arbitration.” (<i>Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC</i> (2012) 55 Cal.4th 223, 236 (<i>Pinnacle</i>)). “The party seeking arbitration bears the burden of proving the existence of an arbitration agreement, and the party opposing arbitration bears the burden of proving any defense, such as unconscionability.” (<i>Ibid.</i>) <u>Existence of a valid agreement to arbitrate:</u> Plaintiff entered into a lease agreement on September 12, 2022. The lease agreement includes an Addendum for Arbitration of Disputes and Class Action Waiver which provides: “Any dispute, claim or controversy arising out of or relating to this Lease or your tenancy with Landlord, including the breach, termination, enforcement, interpretation or validity thereof, and including the determination of the scope or applicability of this